

District: Satkhira

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present

Mr. Justice Sardar Md. Rashed Jahangir

Civil Revision No. 3218 of 2019

In the matter of :

Md. Mosharaf Hossain (being dead his heirs: Md. Abdur
Rashid and others)

... Petitioners

-Versus-

Sheikh Mofijul Hossain (being dead his heirs: Mst.
Saleha Khatun alias Saleha Begum and others) and another
... Opposite-parties

Mr. S.M. Ariful Islam, Advocate
... for the petitioners

Mr. Sajal Ahmed, Advocate
... For the opposite-parties

Heard on: 23.10.2024

Judgment on: 30.10.2024

Rule was issued on an application under section 115(1) of the Code of Civil Procedure calling upon the opposite-parties to show cause as to why the Order No. 20 dated 11.03.2019 passed by the Joint District Judge, Second Court, Satkhira in Title Appeal No. 80 of 2015 allowing the application for withdrawal of Title Appeal No. 80 of 2015 as well as Title Suit No. 77 of 2007 (renumbered as T.S. No. 53 of 2011) in part should not be set

aside and/or such other or further order or orders as to this Court may seem fit and proper.

The predecessor of the present petitioners as plaintiff filed Title Suit No. 77 of 2007 (re-numbered as 53 of 2011) before the Assistant Judge, Debhata, Satkhira for declaration of title, recovery of khash possession. Ultimately, the suit was dismissed on contest vide judgment and decree dated 30.09.2015.

Having been aggrieved by the said judgment plaintiff preferred Title Appeal No. 80 of 2015 before the District Judge, Satkhira. The said appeal was transferred to the Joint District Judge, Second Court, Satkhira for disposal. During pendency of the appeal plaintiff-appellant on 06.02.2019 filed an application under Order XXIII, rule 1-2 read with section 151 of the Code of Civil Procedure praying for withdrawal of the appeal as well as the suit simplicitor. Learned Joint District Judge after hearing by the order dated 11.03.2009 allowed the application in part, allowing the plaintiff-appellant to withdraw his appeal only, rejecting the prayer so far it relates to withdrawal of the original suit.

Being aggrieved by and dissatisfied with the aforesaid order of learned Joint District Judge, Second Court, Satkhira dated 11.03.2019 the plaintiff-petitioner filed this revisional application and obtained the Rule.

Mr. S.M. Ariful Islam, learned Advocate for the petitioner submits that there is formal defect in the plaint and for which the plaintiff-petitioner filed the application to withdraw the appeal as well as the original suit without further proceeding the same. He next submits that learned Joint District Judge, Second Court, Satkhira committed error of law in allowing the application partly rejecting the other part. He next submits that the right of the plaintiff to withdraw from his suit without seeking further permission to sue afresh is an absolute right. The Court of law has no authority to reject such application and in view of the above, he prays for making the Rule absolute upon allowing his application.

On the other hand, Mr. Sajal Ahmed, learned Advocate for the opposite parties submits that without fulfilling the criterion of Order XXIII, rule 1 and 2, the plaintiff is not entitled to withdraw his suit with permission to sue afresh. When the Court invites Mr. Ahmed's attention to the application for withdrawal of the appeal as well as the suit filed by the plaintiff-appellant before the appellate Court below, wherefrom it transpires that the application was for withdrawal of the appeal as well as the suit simplicitor without any further prayer allowing him to sue afresh on the self same cause of action. i.e. The plaintiff did not apply before the Court for seeking further permission to sue afresh. Then, Mr. Ahmed did not show his willingness to make further argument.

Heard learned Advocates for both the parties, perused the revisional application together with the annexures.

It appears that sub-rule (1) of rule 1 of Order XXIII of the Code of Civil Procedure provides that at any time after institution of the suit the plaintiff may withdraw his suit or abandon part of his claim. Meaning thereby, the aforesaid provision of sub-rule (1) does not impose any bar or restriction upon the plaintiff to withdraw his suit simplicitor, which includes withdrawal of appeal also i.e. the plaintiff or appellant, as the case may be, is entitled to withdraw his suit or appeal simplicitor at any time after institution of the suit, without seeking further permission to sue afresh on the self same cause of action, provided that in case of appeal, the respondent has not acquired any interest under the judgment and decree of the trial Court. Meaning thereby, the plaintiff-appellant can withdraw his suit as a matter of right and the Court has no option but to allow his application of withdrawal the appeal as well as the suit simplicitor.

In the case of Baidyanath Nandi Vs. Shyama Sundar Nandi reported in A.I.R.(30) 1943 (Cal) 427. It was held that “*If he does not want the liberty to institute a fresh suit nor seeks to avoid the consequences which sub-rule (3) imposes upon him he can withdraw the suit suo motu as laid down in sub-rule (1).*” Thus, the plaintiff’s application for withdrawal of the suit should be allowed as a matter of right.

In the premise above, this Court finds merit in the Rule.

Accordingly, the Rule is made absolute.

The order dated 11.03.2019 is hereby set aside and the plaintiff-petitioner is hereby allowed to withdraw his appeal as well as the suit simplicitor, provided further that according to the sub-rule (3), the plaintiff-petitioner shall not be entitled to sue again on the same cause of action. According to the judgment of the Apex Court passed in the case of Abdur Rahman and others Vs. Kheru Malitha and others reported in 50 DLR(AD)71, the withdrawal of a suit necessarily blots out the effect of the judgment and decree passed prior to the withdrawal. And as such, the judgment and decree dated 30.09.2015 passed by the Assistant Judge, Debhata, Satkhira in Title Suit No. 53 of 2011 is hereby set aside.

No order as to cost.

Communicate the judgment and order at once.